Malaysia estate unlock: complete case workflow

Spec for the app's route finder, step tracker and progress bar. Compiled 11 October 2026 from MyGov, JKPTG and practitioner sources. Not legal advice.

How to read this

Items marked **VERIFY** are points where sources conflict or where no official page confirmed the detail. Confirm them with JKPTG, Amanah Raya or a probate lawyer before hardcoding. Step IDs (for example 4.2) are meant to become step records in your rules library. No set of cases can honestly be called 'all possible cases', so section 9 is a case library you extend as you find new ones.

1. Scope

- MVP scope is Peninsular Malaysia and the Federal Territories. JKPTG's distribution order does not apply in Sabah and Sarawak, which use separate statutes (Sabah: Administration of Native and Small Estates, Probate and Administration Ordinance, Intestate Succession Ordinance; Sarawak: Administration of Estates Ordinance, Probate Officer at the Public Trustee's Office, native adat and NCR land). Treat East Malaysia as a later rule set built with a local specialist.
- The stages are the same for every religion. Religion changes how shares are calculated and adds a few Muslim-only steps. JKPTG's own procedure is not separated by the deceased's religion.
- Every flow assumes the death has happened and no application has been filed yet.

2. What the app must ask (intake)

- Deceased: full name, IC, date of death, religion at death, marital history (including more than one spouse), last address.
- Will or wasiat: exists or not, where the original is, who is named executor.
- Heirs: spouse(s), children, parents, siblings, and any heir who died before or after the deceased (this creates multi-generation chains). For each heir: IC, age, location, citizenship, able to attend a hearing or not.

- Assets: type, estimated value, title or account details, whether a nomination exists, whether jointly held, whether there is a loan.
- Debts: bank loans, cards, zakat, other.
- Known disputes or missing documents.
- Who is willing to act as applicant or administrator.

3. Route decision rules (evaluate in this order)

1. **Remove assets that sit outside the estate.** EPF with a nomination, insurance or takaful with a nomination, and jointly held assets that pass by survivorship are handled by their own claim flows (section 8). Only the remainder is the estate.
2. **Non-Muslim with a will under the Wills Act 1959:** High Court, application for Grant of Probate, whatever the value.
3. **Muslim with a wasiat or hibah:** the valid wasiat is honoured first (up to one third of the estate to non-heirs), the rest goes by faraid. Then route by value and asset type below. **VERIFY** whether a Muslim wasiat changes which court issues the grant.
4. **No will, total estate up to RM5 million (movable, immovable or both):** JKPTG small estate (pusaka kecil).
5. **No will, movable assets only (bank, ASNB, EPF, takaful, car), up to RM600,000:** Amanah Raya summary administration. Since 15 July 2024 JKPTG also accepts movable-only estates, reportedly as a cheaper alternative.
6. **Estate above RM5 million, or contested or complex:** High Court, Letters of Administration, lawyer required.

The RM5 million small estate limit took effect on 15 July 2024. It was RM2 million before, and many online guides still say RM2 million. Store it as a dated rule with a source.

Route	When	Venue	Lawyer	Typical time	Cost notes
R1 Small estate	No will, up to RM5m	JKPTG estate distribution unit, filed on MyLand	Not required	4 months standard if complete and undisputed (Minister, Jan 2026); JKPTG FAQ says 4 to 6 months; practitioner guides say 6 to 18 months	No registration fee for a new application; order fee based on estate value
R2 Summary administration	Movable only, up to RM600k	Amanah Raya branch (or JKPTG)	Not required	About 4 to 6 months (older guide, VERIFY)	Amanah Raya charges; confirm schedule
R3 High Court	Will for non-Muslims, above RM5m, contested or complex	High Court	Required	1 to 3+ years, some report longer	Legal fees reported at RM5,000 to RM20,000+

4. Share rules

4.1 Non-Muslim intestate (Distribution Act 1958, section 6)

Applies to non-Muslims in Peninsular Malaysia and Sarawak. Not to Muslims, non-Muslims in Sabah, or Sarawak natives.

Deceased leaves	Spouse	Children (issue)	Parents
Spouse only	Whole estate		
Children only		Whole estate	
Parents only			Whole estate
Spouse and children	1/3	2/3	
Spouse and parents	1/2		1/2
Children and parents		2/3	1/3

Deceased leaves	Spouse	Children (issue)	Parents
Spouse, children and parents	1/4	1/2	1/4

If there is no spouse, issue or parent, the estate goes in order to: brothers and sisters in equal shares, grandparents, uncles and aunts, great-grandparents, then the government as last resort. Issue includes children and the descendants of children who died first (they take their parent's share).

4.2 Muslim (faraid)

Do not hardcode faraid fractions from this document. Build them as a rules engine and have a syarie lawyer validate it against worked examples. What the sources agree is settled before faraid is applied: funeral and related expenses, the deceased's debts (including zakat and vows), harta sepencarian claimed by a spouse and confirmed by the Syariah High Court, and a valid wasiat up to one third. **VERIFY** the exact order of these deductions.

Under the JKPTG small estate route, heirs may also agree on **muafakat waris**, a voluntary agreement of all heirs on a different split. If every heir agrees, the decision is finalised.

5. Progress model

Phase	What	Weight	Cumulative	Evidence that completes it
1	Prepare	15%	15%	Death certificate uploaded, heirs and assets listed, route inputs complete
2	Choose route and applicant	10%	25%	Route confirmed, applicant agreed
3	File	15%	40%	Submission receipt or case number
4	Review and hearing	20%	60%	Hearing held
5	Order or grant	15%	75%	Order or grant uploaded
6	Execute transfers	25%	100%	Each asset marked transferred with agency proof

Rules:

- Inside a phase, split the weight equally across its mandatory steps. Steps that do not apply are removed and their weight redistributed.
- Phase 6 is per asset: progress = 25% x (assets transferred / assets listed).
- Move the bar only on evidence (receipt, notice, order PDF), never on elapsed time.
- Show 'assets unlocked: n of N' next to the percentage.
- Never show 100% until every listed asset is transferred and no follow-up application is open.
- Adding a missed asset later lowers the percentage. Tell the user why.
- Waiting steps carry an expected window and trigger a stall alert when exceeded.

6. Phase 1: Prepare (all routes)

ID	Step	Notes
1.1	Get the certified death certificate	Needed by every agency
1.2	Do not sell, transfer or spend estate assets. Keep paying quit rent, assessment, insurance and loan instalments	These keep running after death
1.3	Search for a will, EPF and insurance nominations, and joint ownership	Decides which assets are in the estate
1.4	List every asset: land and houses (get a land search or the original title), bank accounts, EPF, ASNB, shares, takaful or insurance, vehicles, business interests	Include loans against each
1.5	List every heir with IC, birth and marriage certificates. Include heirs who have since died	Feeds the share engine
1.6	Estimate values	Needed to pick the route
1.7	For a house with a loan, request a redemption statement and check whether MRTA or MLTA covers the balance	Affects what the heirs actually receive

Muslim-only additions (before applying):

- M1: settle debts, zakat and vows.
- M2: if relevant, claim harta sepencarian at the Syariah High Court. The confirmed spouse share is removed from the estate.
- M3: check for a valid wasiat or hibah and honour it first, up to one third.
- M4: confirm the faraid heirs and gather their IDs and birth certificates.
- M5: obtain a faraid certificate or order from the Syariah Court if the receiving agency requires it. **VERIFY**: sources differ on whether the JKPTG hearing replaces it. Banks, Amanah Raya and land offices are reported to ask for it.
- M6: if there are no faraid heirs, the assets go to Baitulmal.

7. Phase 2: Choose route and applicant

ID	Step	Notes
2.1	Run the decision rules in section 3 and show the user the route with the reason	Route finder output
2.2	Agree who applies. Heirs, trust companies such as Amanah Raya, religious councils, Baitulmal, creditors and valid purchasers can apply under the small estate act	Many families wrongly assume only the eldest can
2.3	For High Court, agree the administrator (up to four reported) and collect consent or renunciation forms from the other heirs	
2.4	Decide whether to hire a lawyer, which is optional for R1 and R2 and required for R3	

8. Phases 3 to 5 by route

R1 JKPTG small estate

ID	Phase	Step
3.1	File	Register a MyLand account and start a new application (Form A, section 8)

ID	Phase	Step
3.2	File	Complete the petition and sign it before a Magistrate or Commissioner for Oaths
3.3	File	Upload: death certificate, heirs' IC copies, land title, proof of movable assets (bank statements, EPF, ASNB), marriage and birth certificates
3.4	File	Submit to the estate distribution office shown on the confirmation, chosen by where the property is. **VERIFY** whether a printed copy must also be delivered within 30 days (one practitioner guide says so)
3.5	File	Receive acknowledgement and expected hearing date
4.1	Hearing	Receive the hearing notice (Form D or S) by email. Confirm every heir was notified
4.2	Hearing	Heirs who cannot attend sign the DDA consent form before a Commissioner for Oaths
4.3	Hearing	Heirs state the method: faraid (Muslims), Distribution Act 1958 (non-Muslims), or muafakat waris
4.4	Hearing	Attend. The officer verifies assets, heirs and method. If all agree, the decision is finalised
4.5	Hearing	If heirs disagree, **VERIFY** the procedure. JKPTG can refer cases to the High Court and heirs reportedly do not pay lawyers' fees for referred cases
5.1	Order	Distribution Order or Letter of Administration is issued within 30 days after the hearing ends
5.2	Order	Pay the order fee, based on the estate's value
5.3	Order	Check the order for errors in names, shares and asset lists before using it

Follow-up application (Form P, section 17) is used for assets left out of the first application, to appoint a new trustee or administrator, to cancel or replace an earlier order, or to withdraw part of one. Treat it as a branch that reopens Phases 3 to 5 for the added item.

R2 Amanah Raya summary administration

ID	Phase	Step
3.1	File	Go to an Amanah Raya branch with: certified death certificate, all heirs' IC, birth and marriage certificates, proof of each asset, and the will if any (a will uses a different procedure)
3.2	File	Amanah Raya opens the file once the documents are complete
4.1	Review	Amanah Raya investigates to verify heirs and property
4.2	Review	Amanah Raya verifies asset values
5.1	Order	Amanah Raya is issued authority (a power of attorney or an administration order)
5.2	Order	Amanah Raya claims the assets from each agency, and files at the High Court or JKPTG if that is needed

R3 High Court (Letters of Administration or Probate)

ID	Phase	Step
3.1	File	Appoint a probate lawyer
3.2	File	Heirs agree the administrator. Other heirs sign consent or renunciation forms
3.3	File	Lawyer files an originating summons and affidavit with: death certificate, IDs, full asset list, proof of ownership, will copy if any, marriage and birth certificates

ID	Phase	Step
3.4	File	Arrange the administration bond: two sureties holding Malaysian assets at least equal to the estate value, unless the court dispenses with it
4.1	Hearing	Court hearing. The court approves the administrator (no will) or recognises the executor (will)
5.1	Order	If there is no objection, the court issues Letters of Administration (no will) or a Grant of Probate (will)
5.2	Order	Administrator may now collect assets, settle debts and distribute

9. Special cases and how they change the workflow

Case	What changes
C1 Muslim, no will, small estate	R1 with faraid. Add M1 to M6
C2 Non-Muslim, no will, small estate	R1 with the Distribution Act table in section 4.1
C3 Non-Muslim with a will	R3 probate, any value
C4 Muslim with wasiat or hibah	Honour the wasiat up to one third first, then faraid for the remainder
C5 Movable assets only, up to RM600k	R2, or R1 via JKPTG
C6 Estate above RM5m	R3 Letters of Administration
C7 Mixed estate (some assets nominated, some not)	Split into nomination claims plus an estate route for the rest. Progress counts each asset separately
C8 Multi-generation deaths (an heir died before the estate was settled)	Build the family tree. That heir's share passes to their own heirs. Reported as a major cause of delay. **VERIFY** how JKPTG wants the chain filed

Case	What changes
C9 Heir abroad or unable to attend	DDA consent form signed before a Commissioner for Oaths. If a foreign national is to receive Malaysian land, State Authority consent may also be required
C10 Heir cannot be traced	A leading cause of delay according to JKPTG. **VERIFY** the procedure. Do not let the app drop an untraceable heir silently
C11 Minor heirs	The court, not the family, appoints guardians and trustees. Funds for a child under 18 are held by a trustee. **VERIFY** the exact process inside R1
C12 Heirs disagree	R1: see step 4.5. R3: lawyers and mediation. Add a 'dispute' state that pauses the progress bar and offers a referral. The app cannot resolve disputes
C13 No heirs	Assets are held by the government. For Muslims with no faraid heirs, they go to Baitulmal
C14 Property has a housing loan	Redemption statement, MRTA or MLTA check, and instalments keep running. The title cannot be refinanced or sold before authority is obtained
C15 Jointly held property	May pass automatically to the surviving co-owner depending on whether title is joint tenancy or tenancy in common. **VERIFY** with the land office per title
C16 Assets found after the order	Form P (section 17) in R1. Re-open Phase 6 for the new asset
C17 Lost title or documents	Get a land search, then proceed. Flag as a likely delay
C18 Spouse claims harta sepencarian (Muslim)	Claim at the Syariah High Court before faraid. Block the share calculation until resolved

Case	What changes
C19 Deceased was a foreign national with Malaysian land	Malaysian law governs Malaysian immovable property. **VERIFY** with a lawyer
C20 Sabah or Sarawak	Out of MVP scope. Show a clear message and a referral

10. Phase 6: execute transfers per asset

Asset	Where	What to bring	Notes
Land and houses	Land Office. State Director of Lands handles some title types (HS(D), GRN, PN) and the District Land Office others (HSM, GM, PM)	The order, original title, current quit rent receipt, IDs	Transfer by inheritance is reported to carry a nominal RM10 stamp duty. **VERIFY** and check Budget 2027 changes. No inheritance tax exists. RPGT applies only on a later sale, with the acquisition price set at market value on the date of death
Bank accounts	The bank	Death certificate, administrator or executor IDs, statements, proof of relationship, the order or grant	Accounts freeze when the bank learns of the death. Joint accounts with a survivorship clause and 'either to sign' may continue after an indemnity form. Others stay frozen until a grant

Asset	Where	What to bring	Notes
EPF	EPF branch	Death certificate, IDs, nomination or legal documents	With a nomination: paid to the nominee. For Muslim members the nominee acts as executor and distributes by faraid. For non-Muslims the nominee receives per the nomination. Without one: next of kin must provide legal papers, which can be costly. An EPF death assistance payment (RM2,500) is reported for members who die before 60 and must be claimed within about six months. **VERIFY**
Insurance and takaful	The insurer or takaful operator	Death certificate, nominee ID, claim form	Not part of the estate. If the nominee does not claim within 60 days the insurer writes to them. After 12 months of no claim the insurer treats it as if there were no nomination
ASNB and unit trusts	ASNB or the fund manager	The order or grant	Part of the estate unless nominated
Shares	Broker or CDS account holder	The order or grant	**VERIFY** the process
Vehicles	JPJ	The order	Change of ownership

Asset	Where	What to bring	Notes
Unclaimed money in the deceased's name	Unclaimed money registries	The order	The order lets heirs claim any hidden balance
Debts	Creditors		Pay or settle before distributing the balance to heirs

When every listed asset is transferred and distributed, mark the estate complete.

11. Open items to verify before launch

1. Whether a printed copy of Form A must follow the online filing, and the 30-day rule.
2. Whether the JKPTG hearing replaces a Syariah Court faraid certificate, and which agencies insist on it.
3. The exact JKPTG procedure when heirs disagree.
4. How multi-generation deaths, minors and untraceable heirs are filed inside R1.
5. The current order fee schedule and Amanah Raya charges.
6. Stamp duty and registration fees for transfer by inheritance, including any Budget 2027 changes.
7. The order of deductions before faraid.
8. Whether a Muslim wasiat changes which court issues the grant.
9. Timelines. Official and practitioner figures differ widely, so show ranges.
10. East Malaysia rule sets.

12. Sources

- MyGov: Division of Inheritance, Small Inheritance Application Procedure, Procedure for Applying for a Large Inheritance, Property Valuation and Estate Management Agency, Important Things Before Dividing Inheritance for Muslims (malaysia.gov.my)
- JKPTG: Pembahagian Harta Pusaka and Pusaka Kecil FAQ (jkptg.gov.my)
- Utusan, 'Kes harta pusaka kecil selesai tahun 2025' (84,384 cases resolved worth RM19.01 billion, 46,707 pending at end 2025, 4-month standard for complete and undisputed applications)

- Sinar Harian, on the RM5 million limit effective 15 July 2024 and movable-only estates at JKPTG
- Distribution Act 1958 summaries: Chia, Lee and Associates; Johor Bar; Malaysian Bar
- Faraid and wasiat: Conventus Law, Azmi and Associates, MyGov Muslim inheritance guidance
- EPF and insurance: Conventus Law, SAYS, FMT
- Bank accounts: RinggitPlus
- Property transfer, tax and loans: PropertyGuru, IQI, practitioner guides
- Practitioner timelines and costs: RinggitWise, Clickbina, AskLegal, Low and Partners
- East Malaysia: Sarawak Administration of Estates Ordinance, Small Estates (Distribution) Act 1955 (Part IV, Sabah)